Customs and Excise (General) (Amendment) Regulations, 2022
(No. 113)

IT is hereby notified that the Minister of Finance and Economic Development has, in terms of section 235, as read with section 120, of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

1. (1) These regulations may be cited as the Customs and Excise (General) (Amendment) Regulations, 2022 (No. 113).

(2) These regulations shall apply with effect from 1st January, 2023.

2. The Customs and Excise (General) Regulations, 2001, published in Statutory Instrument 154 of 2001 (hereinafter referred to as "the principal regulations"), are amended in section 62 (*Entry of Goods for Exportation*) by the deletion of paragraph B to the proviso in subsection (1)(a)(iii) and insertion of the following—

"B. goods for which a bill of entry has been submitted and assessed by customs, export shall be made within five days of assessment date.".

3. The principal regulations are amended in section 103 (*Rebate of duty on goods imported by relief, welfare and church organisations and bodies for free distribution among persons in need*) by the deletion of subsection (1) and insertion of the following—

"(1) Subject to this section, and subject to such conditions or restrictions as the Commissioner may in each case determine, a rebate of duty shall be granted on such goods, excluding new clothing, footwear, bed linen and goods used for the generation of income or the making of profits, or any such other goods as the Commissioner may approve when such goods are imported for free distribution among persons in need by any international or regional organisation, body or agency which has been designated by the Minister as a relief organisation, body or agency.".

4. The principal regulations are amended in section 142 (*Rebate of duty on capital equipment imported for use in special economic*

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zones) by the insertion of a new subsection after subsection (7) to read as follows—

"(7) The rebate in this section shall only be granted to operators in the special economic zones that meet the qualifying degree of export orientation in terms of section 2 of the Income Tax Act [*Chapter 23:06*].".

5. The principal regulations are amended by the deletion of section 144L *(Rebate of duty on capital equipment for use in Tourism Development zones).*

6. The principal regulations are amended by the insertion of the following section after section 144 V—

"*Rebate of duty on equipment for scientific research imported for use in research institutions*

144W. (1) Subject to this section and to such conditions as the Commissioner may fix, a rebate of duty shall be granted on equipment imported for exclusive use in scientific research recommended by the Ministers responsible for Health, Mining, Agriculture and Higher and Tertiary Education.

(2) No research equipment on which a rebate of duty has been granted under the provisions of this section shall be sold or otherwise disposed of in Zimbabwe without the prior consent of the Commissioner and on payment of the rebated duty or such lesser amount as he or she may determine.

(3) The Secretaries responsible for Agriculture, Health, Mining and Higher and Tertiary Education and the Commissioner shall, on or by the tenth day of every month, submit independent reports to the Secretary for Finance and Economic Development providing the following information under this rebate of duty:

(i) details of the list of approved importers;

(ii) the quantum and value of imports by each approved importer and the tariff codes thereof.".

(4) The Commissioner shall grant rebate of duty on the basis, and within the confines of the indicative equipment as follows:

SCHEDULE

Tariff Code	Product Description
90.18	Instruments and appliances used in medical, surgical, dental or veterinary sciences, including scintigraphic apparatus, other electro-medical apparatus and sight-testing instruments.
90.22	Apparatus based on the use of x-rays or of alpha, beta gamma or other ionising radiations, whether or not for medical, surgical, dental or veterinary uses including radiography or radio therapy apparatus, x-ray tubes and other x-ray generators, high tension generators control panels and desks, screens, examination or treatment tables, chairs and the like.
9026	Instruments and apparatus for measuring or checking the flow, level, pressure or other variables of liquids or gases (for example, flow meters, level gauges, manometers, heat meters), excluding instruments and apparatus of heading 90.14, 90.15, 90.28 or 90.32.
90.27	Instruments and apparatus for physical or chemical analysis (for example, polarimeters, refractometers, spectrometers, gas or smoke analysis apparatus); instruments and apparatus for measuring or checking viscocity, porosity, expansion, surface tension or the like; instruments and apparatus for measuring or checking quantities of heat, sound or light (including exposure meters); microtomes.
8419.60.00	- Machinery for liquefying air or other gases
8419.20.00	- Medical, surgical or laboratory sterilizers
8419.89.00	- - Other
7311.00.10	- - - Of a capacity of 30 kgs or more
8419.89.00	- - Other
70.17	Laboratory, hygienic or pharmaceutical glassware, whether or not graduated or calibrated.
8421.19.00	- - Other
8479.89.90	- - Other
9030.10.00	- Instruments and apparatus for measuring or detecting ionising radiations

7. The principal regulations are amended by the insertion of a new section after section 148 to read as follows—

"*Entry for removal in bond for export from Zimbabwe*

148A. (1) When goods liable for excise duty are removed in bond from licensed premises for export from Zimbabwe, they shall be conveyed in road vehicles that have electronic seals placed

on them in the manner prescribed in section 60(5) adjusted to be effected on excisable goods.

(2) Road vehicles conveying the goods liable for excise duty for export from Zimbabwe shall use the routes as specified by the Commissioner in the Twelfth Schedule of the Customs and Excise (Ports of Entry and Routes) Order 2002, published in Statutory Instrument 14 of 2002.

(3) If any transporter or owner of the goods contravenes any provision of this section—

(a) the goods may be liable for seizure;

(b) the offender may be liable to a fine of US$500;

(c) the offender shall be liable to a penalty of US$1,300 for tampering with, loss or unauthorized breaking of electronic seals placed on a road vehicle;

(d) the transporter shall be liable to a penalty of US$2,000, for diversion from the route specified by the Commissioner.".